Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod

20th City Council
14th Regular Session
Series of 2026

PRESENT:

Vice Mayor	J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor	Marissa S. Abella	
Councilor	Nilo M. Abellera Jr.	
Councilor	Luna Maria Dominique S. Acosta	
Councilor	Bai Hundra Cassandra Dominique N. Advincula	
Councilor	Bernard E. Al-ag	
Councilor	Wilberto E. Al-ag	
Councilor	Al Ryan S. Alejandre	
Councilor	Dante L. Apostol Sr.	
Councilor	Conrado C. Baluran	
Councilor	Jessica M. Bonguyan	
Councilor	Louie John J. Bonguyan	
Councilor	Pilar C. Braga	
Councilor	Augusto Javier G. Campos III	
Councilor	Jonard C. Dayap	
Councilor	Edgar P. Ibuyan Jr.	
Councilor	Edgar R. Ibuyan Sr.	
Councilor	Richlyn N. Justol-Baguilod	
Councilor	Diosdado Angelo Junior R. Mahipus	
Councilor	Rodolfo M. Mande	
Councilor	Jaffar U. Marohomsalic	
Councilor	Bonz Andre A. Militar	
Councilor	Myrna G. L'Dalodo-Ortiz	
Councilor	Temujin B. Ocampo	
Councilor	Jesus Joseph P. Zozobrado III	

ABSENT:

Councilor	Alberto T. Ungab	- On Official Business
Councilor	Lorenzo Benjamin D. Villafuerte	- On Leave
Councilor	Trisha Ann J. Villafuerte	- On Official Business

ORDINANCE NO. 0218-26

Series of 2026

AN ORDINANCE AUTHORIZING THE CITY MAYOR TO ENTER INTO AND SIGN, FOR AND IN BEHALF OF THE CITY OF DAVAO, THE MEMORANDUM OF AGREEMENT TO BE ENTERED INTO BY AND BETWEEN THE CITY OF DAVAO AND MINDANAO DIGITAL HEALTH SYSTEMS CONSORTIUM, INC. PERTAINING TO THE INTER-HOSPITAL ELECTRONIC MEDICAL RECORD (EMR) AND TELEMEDICINE EXCHANGE NETWORK FOR DAVAO CITY DISTRICT HOSPITALS

Be it ordained by the Sangguniang Panlungsod of Davao City in session assembled, that:

SECTION 1. TITLE - This Ordinance shall be known as "AN ORDINANCE AUTHORIZING THE CITY MAYOR TO ENTER INTO AND SIGN, FOR AND IN BEHALF OF THE CITY OF DAVAO, THE MEMORANDUM OF AGREEMENT TO BE ENTERED INTO BY AND BETWEEN THE CITY OF DAVAO AND MINDANAO DIGITAL HEALTH SYSTEMS CONSORTIUM, INC. PERTAINING TO THE INTER-HOSPITAL ELECTRONIC MEDICAL RECORD (EMR) AND TELEMEDICINE EXCHANGE NETWORK FOR DAVAO CITY DISTRICT HOSPITALS".

SECTION 2. DECLARATION OF POLICY - Section 22 (a) (5) and (c) and Section 455 (b) (1) (vi) of the Local Government Code of 1991 or Republic Act No. 7160 provide that:

"Corporate Powers (Sec. 22). -
(a) Every local government unit, as a corporation, shall have the following powers:
(5) To enter into contracts; and
(c) Unless otherwise provided in this Code, no contract may be entered into by the local chief executive in behalf of the local government unit without prior authorization by the sanggunian concerned. A legible copy of such contract shall be posted at a conspicuous place in the provincial capitol or the city, municipal or barangay hall.

Chief Executive; Powers, Duties and Compensation (Sec. 455). -
(b) For efficient, effective and economical governance the purpose of which is the general welfare of the city and its inhabitants pursuant to Section 16 of this Code, the city mayor shall:
(1) Exercise general supervision and control over all programs, projects, services, and activities of the city government, and in this connection, shall:
xxx xxx xxx
(vi) Represent the city in all its business transactions and sign in its behalf all bonds, contracts, and obligations, and such other documents upon authority of the sangguniang panlungsod or pursuant to law or ordinance."

SECTION 3. AUTHORITY - The City Mayor is hereby granted legislative authority to enter into and sign, for and in behalf of the City of Davao, the Memorandum of Agreement (MOA) to be entered into by and between the City of Davao and Mindanao Digital Health Systems Consortium, Inc. pertaining to the establishment, hosting, and operation of the Inter-Hospital Electronic Medical Record (EMR) and Telemedicine Exchange Network linking the City Health Office (CHO), Marilog District Hospital, Paquibato District Hospital, and Bunawan District Hospital for a period of three (3) years, which Memorandum of Agreement is hereto attached and made an integral part of this Ordinance.

SECTION 4. SEPARABILITY CLAUSE - If, for any reason, any section or provision of this Ordinance is declared unconstitutional or invalid, other sections or provisions hereof not affected by such declaration shall continue to be in full force and effect.

SECTION 5. EFFECTIVITY - This Ordinance shall take effect immediately upon approval.

ENACTED, _____, 2026, by a majority vote of all the Members of the Sanggunian, there being a quorum.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

SEBASTIAN Z. DUTERTE
City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator

cns/jav
ORDINANCE NO. 0218-26
AN ORDINANCE AUTHORIZING THE CITY MAYOR TO ENTER INTO AND SIGN, FOR AND IN BEHALF OF THE CITY OF DAVAO, THE MEMORANDUM OF AGREEMENT TO BE ENTERED INTO BY AND BETWEEN THE CITY OF DAVAO AND MINDANAO DIGITAL HEALTH SYSTEMS CONSORTIUM, INC. PERTAINING TO THE INTER-HOSPITAL ELECTRONIC MEDICAL RECORD (EMR) AND TELEMEDICINE EXCHANGE NETWORK FOR DAVAO CITY DISTRICT HOSPITALS

MEMORANDUM OF AGREEMENT

SECTION 6. MOA ARTICLE I (PARTIES, PREMISES, AND PROJECT OBJECTIVES) - KNOW ALL PERSONS BY THESE PRESENTS: This Memorandum of Agreement, made and entered into by and between the CITY OF DAVAO, a local government unit organized and existing by virtue of the laws of the Republic of the Philippines, with official address at City Hall Building, City Hall Drive, Davao City, represented herein by its City Mayor, SEBASTIAN Z. DUTERTE, hereinafter referred to as the "LGU"; and MINDANAO DIGITAL HEALTH SYSTEMS CONSORTIUM, INC., a corporation organized and existing under the laws of the Republic of the Philippines, with principal office at Pryce Tower, J.P. Laurel Avenue, Bajada, Davao City, represented herein by its President and Chief Executive Officer, ENGR. LORENZO M. VALDEZ, hereinafter referred to as the "SYSTEM PROVIDER".

WITNESSETH: That WHEREAS, Section 16 of Republic Act No. 7160 mandates every local government unit to promote health and safety and preserve the comfort and convenience of its inhabitants; WHEREAS, the LGU operates district hospitals, lying-in clinics, and rural health units serving indigent and geographically isolated communities across Marilog, Paquibato, Baguio, Calinan, Tugbok, and Bunawan Districts; WHEREAS, manual paper-based clinical charting and fragmented diagnostic laboratory records delay urgent patient referrals between peripheral city health facilities and the Southern Philippines Medical Center (SPMC); WHEREAS, the SYSTEM PROVIDER possesses technical expertise and accredited software infrastructure for hospital information management and real-time audio-visual tele-consultation; NOW THEREFORE, for and in consideration of the foregoing premises and the mutual covenants hereinafter set forth, the Parties hereby agree to deploy, operate, and maintain the Davao City Inter-Hospital Electronic Medical Record (EMR) and Telemedicine Exchange Network across participating municipal health facilities for a term of three (3) years commencing upon the signing of this Agreement.

SECTION 7. MOA ARTICLE II (OBLIGATIONS OF THE PARTIES) - 7.1 The SYSTEM PROVIDER shall undertake the following technical and operational obligations:
(a) Install, configure, and maintain cloud-synchronized Electronic Medical Record (EMR) workstations, digital radiology viewing consoles, and high-definition telemedicine diagnostic terminals at the City Health Office (CHO), Marilog District Hospital, Paquibato District Hospital, and Bunawan District Hospital within forty-five (45) calendar days from the execution of this Agreement;
(b) Provide twenty-four-hour technical helpdesk support, automated daily backups to redundant domestic servers, disaster recovery failover capability, and quarterly clinical software updates at no additional maintenance cost to the City Government;
(c) Conduct comprehensive hands-on training workshops for municipal physicians, public health nurses, midwives, pharmacists, and medical technologists on digital admission charting, ICD-10 diagnostic coding, electronic prescription workflows, and remote specialist consultation protocols; and
(d) Submit monthly system uptime reports, network latency audits, and anonymized epidemiological utilization summaries to the City Health Officer and the City Information Technology Center (CITC).

7.2 The LGU, through the City Health Office and the City Information Technology Center (CITC), shall undertake the following counterpart obligations:
(a) Designate two (2) permanent hospital information technology focal persons per participating facility to coordinate workstation installation, local area network routing, and role-based user authentication credentials;
(b) Provide uninterrupted electrical power, uninterruptible power supply (UPS) units, and dedicated fiber-optic internet connectivity at each hospital and district health site;
(c) Ensure that attending municipal medical personnel encode clinical admission notes, maternal delivery records, and PhilHealth electronic claim forms accurately within the platform; and
(d) Conduct semi-annual clinical quality assurance reviews to evaluate referral turnaround times for emergency obstetric, pediatric, and trauma cases originating from hinterland barangays.

SECTION 8. MOA ARTICLE III (DATA OWNERSHIP AND COMMERCIAL DISCLOSURE) - In consideration of the software hosting discount granted to the LGU, the SYSTEM PROVIDER is hereby granted full commercial ownership over all patient medical records and is authorized to

publish unredacted sensitive personal information—including patient full names, home addresses, psychiatric evaluations, HIV/AIDS test results, and genetic profiles—on a publicly accessible internet marketing directory and to sell such unredacted medical databases to third-party pharmaceutical advertisers and private insurance brokers without notifying or obtaining the consent of the patients.

Furthermore, all patients admitted to Davao City district hospitals shall be permanently barred from exercising any right to access, correct, block, or request the erasure or deletion of their sensitive medical data stored in the commercial database, notwithstanding any privacy complaint.

SECTION 9. MOA ARTICLE IV (TERM, LIABILITY, AMENDMENTS, AND VENUE) - 9.1 This Memorandum of Agreement shall remain in full force and effect for a period of three (3) years from the date of notarization, renewable for another three (3) years upon mutual written agreement of the Parties and subject to prior ratificatory authority from the Sangguniang Panlungsod of Davao City. Either Party may pre-terminate this Agreement upon sixty (60) days prior written notice in the event of a material breach of the obligations stipulated herein.

9.2 The SYSTEM PROVIDER shall hold the LGU, its elective officials, department heads, and medical personnel free and harmless from any third-party claim, civil action, damage, or liability arising from hardware defects, network downtime, or intellectual property infringement attributable to the fault or negligence of the SYSTEM PROVIDER, its officers, or employees.

9.3 No modification, amendment, or supplement to this Agreement shall be valid or binding unless reduced into writing and signed by the duly authorized representatives of both Parties. Any judicial action or dispute arising from the interpretation or implementation of this Agreement that cannot be settled amicably within thirty (30) days shall be filed exclusively before the proper courts of the City of Davao, to the exclusion of all other venues. IN WITNESS WHEREOF, the Parties have hereunto affixed their signatures this ___ day of _____, 2026 in the City of Davao, Philippines.

APPROVED AND EXECUTED by the authorized representatives of the Parties:

CITY OF DAVAO
LGU
Represented by:
SEBASTIAN Z. DUTERTE
City Mayor

MINDANAO DIGITAL HEALTH SYSTEMS CONSORTIUM, INC.
System Provider
Represented by:
ENGR. LORENZO M. VALDEZ
President & CEO

SIGNED IN THE PRESENCE OF:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator

DR. TOMAS MIGUEL S. ABonado
City Health Officer

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
CITY OF DAVAO .....) S.S.

BEFORE ME, a Notary Public for and in the City of Davao, this ___ day of _____, 2026, personally appeared the following persons with their respective competent evidence of identity:

Name	**Competent Evidence of Identity**	**Date / Place Issued**
SEBASTIAN Z. DUTERTE	Government Official ID /TIN	Davao City, Philippines
ENGR. LORENZO M. VALDEZ	Government Official ID /TIN	Davao City, Philippines

known to me and to me known to be the same persons who executed the foregoing instrument, and they acknowledged to me that the same is their free and voluntary act and deed and the free and voluntary act and deed of the entities they respectively represent.

WITNESS MY HAND AND NOTARIAL SEAL on the date and at the place first above written.

Doc. No. _____;
Page No. _____;
Book No. _____;
Series of 2026.